

Pak 301

Short Notes

Lec # 16

The Objectives Resolution (1949)

- **Presented By:** Liaquat Ali Khan (Prime Minister of Pakistan)
 - **Approved:** March 12, 1949
 - **Significance:** The first constitutional document of Pakistan, forming the foundation for future constitutions.
-

Key Features of the Objectives Resolution:

1. **Sovereignty:** Belongs to Almighty Allah; delegated to the state of Pakistan as a sacred trust.
 2. **State Authority:** To be exercised by the people's representatives within Islamic limits.
 3. **Democracy & Justice:** Principles of democracy, freedom, equality, tolerance, and social justice as per Islam.
 4. **Islamic Guidance:** Enabling Muslims to organize their lives per Quran and Sunnah.
 5. **Minority Rights:** Freedom for minorities to practice their religion and develop their cultures.
 6. **Legitimate Safeguards:** Protection of interests of minorities and backward classes.
 7. **Federation:** Pakistan to be a federation with autonomous units, ensuring sovereignty and territorial integrity.
 8. **International Role:** Aiming for progress, peace, and happiness of humanity.
-

Importance of the Objectives Resolution:

- Established **God's sovereignty** as a distinctive principle.
 - Emphasized **universal democratic values** within an Islamic framework.
 - Guaranteed **minority rights** while maintaining Islamic principles.
 - Ensured the **autonomy** of federating units, protecting their powers and integrity.
 - Served as the **Preamble to all constitutions** of Pakistan due to its centrality.
-

Objections by Non-Muslims:

Learning that matters – Get more short notes :
03054688271

Pak 301

Short Notes

- Fear of mixing religion and politics, opposing the idea of God's sovereignty.
 - Concern about **inequality** and possible rise of religious extremism.
 - Claimed that **Shariah law** might not be suitable for modern times.
 - Feared a shift toward a **theocratic state**.
-

Historical Significance:

- Framework to balance **Islamic principles** with **modern democratic values**.
 - Showed the moderate vision of AIML leaders who sought a balance between religious laws and international standards.
 - Remains a guiding document for Pakistan's constitutional history.
-

Lecture 17: Constitutional Issues (Pak301):

Constitution Overview:

A constitution is a set of fundamental principles that outline governance, political power, and authority. It defines the relationship between government institutions and society, taking precedence over ordinary laws. Initially, Pakistan adopted the **Government of India Act (1935)** with modifications.

Major Constitutional Issues:

1. Federalism:

- **Challenges:** Pakistan was geographically divided into East Pakistan (more populous but smaller in size) and West Pakistan (larger area with four administrative units).
- **Conflict:** Provinces demanded **more autonomy**, but the British legacy emphasized a strong central government.
- **Outcome:** Strong central government continued in the **Interim Constitution** and **1956 Constitution**.

2. Representation:

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

- East Pakistan's larger population created conflict with West Pakistan's multiple provinces.
- **Basic Principle Committee (BPC):**
 - **First Report (1950):** Proposed bicameral legislature with representation based on population in the lower house and equal provincial representation in the upper house. It faced opposition and was withdrawn.
 - **Second Report (1952):** Proposed equal representation for East and West Pakistan, but it was also opposed.
- **Muhammad Ali Bogra Formula (1953):**
 - Proposed bicameral legislature: **Equal provincial representation** in the upper house, **population-based representation** in the lower house.
 - **Accepted solution:** Both houses would have equal strength in joint sessions.
- 3. **Separate vs. Joint Electorate:**
 - **Separate Electorate:** A British legacy since 1909, supported by religious elements.
 - **Joint Electorate:** Preferred by minorities and later adopted in **1957** for all of Pakistan.
- 4. **National Language Issue:**
 - **Jinnah's Vision (1948):** Urdu declared the national language with allowance for provincial languages.
 - **Opposition:** Strong protests in East Bengal led to the **Language Movement (1952)**.
 - **Resolution:** Urdu and Bengali were both made national languages (1954). Urdu became the sole national language in the **1973 Constitution**, with regional language development supported.
- 5. **Parliamentary vs. Presidential System:**
 - Initial preference for the **parliamentary system**.
 - Support for a **presidential system** grew after the 1958 military takeover, leading to the **1962 Presidential Constitution**.
- 6. **Islamic or Secular State:**
 - Consensus from the Pakistan Movement for a state tied to **Islamic principles**.
 - **Objectives Resolution:** Rejected a theocracy and set guidelines for governance based on Islamic values.
 - Key debates:
 - Who determines the Islamic nature of laws? (E.g., elected assembly or Board of Ulema)
 - Women's rights, religious minorities, and legislation scope.
 - **Ulema's 22 Points:** Provided religious guidelines for the constitution.
 - **Middle Course Adopted:** Blended Islamic principles with modern governance.

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

Lec # 18

1. **Interim Constitution (1947):**
 - Modified Government of India Act (1935) became the framework.
 - Constituent Assembly (CA) began its work on August 11, 1947.
2. **Objectives Resolution (1949):**
 - Adopted Islamic and democratic values for the constitution.
3. **Basic Principles Committee (BPC):**
 - Established to draft the constitution, supported by sub-committees and an advisory Board of Talimat-i-Islamia for religious input.
4. **First BPC Report (1950):**
 - Proposed a bicameral legislature, a powerful president (not necessarily Muslim), and equal representation for both wings.
 - Criticism: East Pakistan opposed equal representation despite its larger population; lack of Islamization and language clarity drew further backlash.
5. **Second BPC Report (1952):**
 - Adjustments included a Muslim head of state, equal legislative seats for both wings, Islamic law-making principles, and an advisory board of Islamic scholars.
 - Criticism: West Pakistan resisted equal representation in the Upper House, creating political turmoil.
6. **Muhammad Ali Formula (1953):**
 - Balanced representation in joint sessions (175 seats each for East and West Pakistan).
 - Both Urdu and Bengali recognized as official languages.
 - Widely accepted but still stirred concerns over language and regional identity.
7. **Constitutional Progress Stalled:**
 - The CA was dissolved by Governor General Ghulam Muhammad in 1954. The dissolution was deemed illegal by the Sindh Court but upheld by the Federal Court.
8. **Second Constituent Assembly (1955):**
 - Formed through indirect elections.
 - "One Unit Scheme" merged West Pakistani provinces into a single unit, simplifying representation.
9. **1956 Constitution:**
 - Approved on January 29, 1956, and enforced on March 23, 1956.
 - Declared Pakistan an Islamic Republic.

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

This evolution highlights the challenges of balancing regional, religious, and political aspirations during Pakistan's early nation-building years.

Lecture 19 - The Constitution of 1956 (PAK301):

1. Parliamentary System:

- Executive authority vested in the **President**, exercised on the **Prime Minister's advice**, except in discretionary matters.
- **President:**
 - Ceremonial role with limited powers.
 - Must be **Muslim, 45 years old**, and qualified to be a National Assembly member.
 - Elected by the **National Assembly (NA)** and Provincial Assemblies.
- **Prime Minister:**
 - Appointed by the President.
 - Could only be removed if the President was certain the PM had lost NA's majority support.
 - Head of government, assisted by the cabinet.
- **National Assembly:**
 - Single house of Parliament with **300 seats + 10 for women**.
 - Direct elections for general seats.
 - Had legislative and monetary control.

2. Federal System:

- Divided powers into **Federal, Provincial, and Concurrent Lists**.
- Two provinces: **East Pakistan** and **West Pakistan**.

3. Provincial Structure:

- Parliamentary system at the provincial level.
- **Governor** as nominal head; real powers with **Chief Minister and cabinet**.
- Centre had overriding and emergency powers:
 - **Clause 191:** Threat to security or economy.
 - **Clause 193:** Provincial constitutional crisis.

4. Independent Judiciary:

- **Supreme Court** (at federal level), **High Courts** (at provincial level), and subordinate courts.

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

- Powers included constitutional interpretation, dispute resolution, and safeguarding citizen rights.
 - 5. **Fundamental Rights:**
 - Civil and political rights granted but could be suspended during emergencies.
 - 6. **Directive Principles of State Policy:**
 - Provided guidelines for governance:
 - Islamic practices, welfare of people, non-discrimination, and fulfillment of basic needs.
 - Objectives Resolution included as the **Preamble**.
 - 7. **Islamic Character:**
 - Islamic Republic name.
 - Objectives Resolution as Preamble.
 - No law could violate Islamic principles.
 - Commission to align laws with Islam.
 - Matters of Islamic compliance could be referred to the judiciary.
 - Islam not declared state religion.
-

Working of the Constitution

- Came into force: **March 23, 1956.**
- Abrogated: **October 7, 1958.**
- No elections were held during its tenure.

This constitution blended Islamic values with modern governance principles but had a short-lived implementation.

Lecture 20: The 1956 Constitution

- **Background:** Passed after deliberations, replacing the Interim Constitution, it had 234 Articles and 6 Schedules. It declared the country as the **Islamic Republic of Pakistan.**
- **Features:**
 1. **Parliamentary System:**
 - Executive authority vested in the President (ceremonial role), with the real power lying with the Prime Minister.
 - The President was elected by the National Assembly (NA) and Provincial Assemblies.
 - The Prime Minister was appointed by the President but could only be removed if he lost majority support in the NA.
 2. **Federal System:**
 - The Constitution included three lists: Federal, Provincial, and Concurrent.

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

- Pakistan had two provinces.
- 3. **Provincial Structure:**
 - Provinces had their elected Assemblies with a Governor as the nominal head, while real power lay with the Chief Ministers.
- 4. **Independent Judiciary:**
 - Supreme Court was the highest court, and its role was to interpret the Constitution and resolve disputes between governments.
- 5. **Fundamental Rights:**
 - Civil and political rights were granted but could be suspended in emergencies.
- 6. **Islamic Character:**
 - The name was the **Islamic Republic**, with provisions ensuring no law violated Islamic principles.
 - Islamic principles were incorporated in the Constitution, and laws were to be examined for conformity with Islam.
- 7. **Working:**
 - The Constitution remained in force from **March 23, 1956, to October 7, 1958**, before being abrogated.

The 1962 Constitution

- **Background:**
 - The military, under Ayub Khan, took over on **October 7, 1958**. The administration criticized the Parliamentary system and sought stability through a new Constitution.
- **Constitution-Making:**
 - The **Basic Democracies** system (1959) involved local councils acting as an electoral college for the President and National Assembly.
 - A **Constitutional Commission** was formed in 1960, which recommended the creation of a new Constitution based on local conditions and needs.
- **Features:**
 1. **Presidential System:**
 - A strong President with vast powers, including the ability to dissolve the National Assembly (NA) and appoint key officials.
 - The President was elected indirectly, could serve for 5 years, and could seek re-election with approval after 8 years.
 2. **National Assembly (NA):**
 - A **unicameral** legislature with **150 seats**, including reserved seats for women.
 - Legislative powers were mainly with the NA, but the President had the final say.

Learning that matters – Get more short notes :

03054688271

Pak 301

Short Notes

3. **Federalism:**
 - There were two provinces: **East Pakistan** and **West Pakistan**. Only a **Central List** of subjects existed for governance.
 - Provincial governors were under the direct control of the President.
 4. **Fundamental Rights:**
 - Fundamental rights were guaranteed but could be suspended under certain conditions.
 5. **Islamic Provisions:**
 - The **Objectives Resolution** was incorporated into the Preamble, and provisions for Islamic Ideology and research institutes were established.
 6. **Political Parties:**
 - Initially, political parties were not allowed, but the **Political Parties Act** of 1962 permitted their formation.
- **Working:**
 - The Constitution was in force from **June 8, 1962, to March 25, 1969**, before being suspended.

The **1956 Constitution** of Pakistan, effective from **March 23, 1956**, replaced the Interim Constitution and declared the country as the **Islamic Republic of Pakistan**. It introduced a **parliamentary system** with a **ceremonial president** and a **prime minister** with real power. The constitution allowed for a **federal system** with two provinces, guaranteed **fundamental rights**, and emphasized **Islamic principles**. It lasted until **October 7, 1958** when it was abrogated.

The **1962 Constitution**, enforced from **June 8, 1962**, was created after the military, led by **Ayub Khan**, took over in **October 1958**. This constitution introduced a **presidential system** where the president had extensive powers, including the ability to dissolve the National Assembly. The **Basic Democracies system** was introduced, with local councils electing the president and national assembly members. The constitution also emphasized **Islamic provisions** and was in effect until **March 25, 1969**, when it was suspended.

These constitutional changes reflected the evolving political and governance structures in Pakistan during the 1950s and 1960s.